

25NWCV03818 25NWCV03818

County: los-angeles

Division: Civil Law and Motion

Department: C

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Case Number: 25NWCV03818 Hearing Date: August 19, 2026 Dept: C

RAMIREZ vs PHILLIPS

CASE NO.: 25NWCV03818

HEARING: 8/19/26 @ 9:30 a.m.

#11

TENTATIVE RULING

I.

Defendant KEVIN PHILLIPS's Motion to

Compel Further Discovery Responses to Special Interrogatories, Set one, is CONTINUED to September 9, 2026 in Department C at 9:30 a.m. A joint separate statement must be filed on or before September 2, 2026.

II.

Defendant KEVIN PHILLIPS's Motion to

Compel Further Discovery Responses to Request for Admissions, Set one, is ADVANCED from August 20, 2026 to this date and CONTINUED to September 9, 2026 in Department C at 9:30 a.m. A joint separate statement must be filed on or before September 2, 2026.

Clerk to give notice.

I.

Defendant KEVIN PHILLIPS (Defendant) moves to compel

Plaintiff ULISES FIGUEROA RAMIREZ (Plaintiff) to provide further verified code-complaint responses to Special Interrogatories, Set One, Nos. 3, 5, 7, 36,

37, and 46.

II.

Defendant additionally moves to compel Plaintiff to provide further verified code-complaint responses to Request for Admissions, Set One, No. 24.

Background

This action arises from a vehicle collision that occurred on January 29, 2024, on the eastbound I-105 near the Bellflower exit. The parties were traveling in the carpool lane when Defendant rear ended Plaintiff's vehicle. (Complaint, PLD-PI-001 (2), p. 5.)

Legal Standard

Code of Civil Procedure section 2031.310 allows a party to file a motion compelling further answers to document requests if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

To establish good cause, the burden is on the moving party to show: (1) relevance to the subject matter and (2) specific facts justifying discovery. (Glenfed Develop. Corp. v. Sup. Ct. (National Union Fire Ins. Co. of Pittsburgh, Penn.) (1997) 53 Cal.App.4th 1113, 1117; see also Kirkland v. Sup. Ct. (Guess?, Inc.) (2002) 95 Cal.App.4th 92, 98.)

A motion to compel further responses to requests for documents shall be accompanied with a meet and confer declaration. (Code Civ. Proc., § 2031.310, subd. (b).)

Discussion

"The Discovery Act requires that, prior to the initiation of a motion to compel, the moving party declare that he or she has made a serious attempt to obtain 'an informal resolution of each issue.' [Citations.] This rule is designed 'to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order. . .' [Citations.] This, in turn, will lessen the burden on the court and reduce the unnecessary

expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes. . .[T]he law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435, 1439.)

The motion is CONTINUED given Plaintiffs have failed to exhaust their meet and confer obligations pursuant to the Code, and as instructed by this department. (See Dept. C. Courtroom Information, <https://www.lacourt.ca.gov/courtroominformation/ui/result.aspx> [“Counsel must meet and confer in person, by telephone, or by videoconference to resolve or narrow discovery disputes. Merely exchanging letters or emails is insufficient.”])

Defense counsel does not contest failing to meet and confer by video, telephone, or in person as required by Code and instructed by this department. Instead, Defense argues that Plaintiff’s counsel “also participated in those meet and confers on the times they responded, provided extensions of time, provided further responses to prior defective responses, or otherwise participated and never objected to the form.” (Reply, p. 2: 9-12.) Defense counsel further argues that “[a]ny complaints by Plaintiffs’ Counsel on the meet and confer efforts, Defendant considers moot, as no such complaints were previously raised in the prior months.” (Reply, p. 2: 13-14.) As presented by the parties, meet and confer efforts had not been exhausted before the filing of this motion. As of June 22, 2026, Plaintiff’s counsel responded, stating they had thought all the outstanding responses were proper and requested what responses, if any, were at issue. (Portillo Decl. ¶ 12; Exh. E) Defense counsel responded, once again, with the at-issue requests that were already previously advised on and advised Plaintiff to provide further responses before the deadline of June 27, 2026, or otherwise grant a mutual extension to respond to meet and confer efforts along with additional time to file our Motions. (Portillo Decl. ¶ 13; See Exh. C). On June 26, Plaintiff provided second further responses to the Special Interrogatories and Request for Admissions, No.22. (Portillo Decl. ¶¶ 6, 14; Exh. F; Pacheco Decl., Exh. 5.) As to the Special Interrogatories, Defendant contends the responses did not address or provide further responses to the at-issue requests, however, no additional efforts to communicate the purported deficiencies were made, despite the parties never discussing the issues by telephone, video, or in person. As to the Request for Admissions, Defendant contends that Plaintiff did not offer further responses to the outstanding Request for Admission No. 24.

The Court finds that Defendant failed to meet and confer, as required by the code, counsel is ordered to make further efforts to resolve the issues presented and narrow the scope of the discovery Defendant seeks. Defense counsel failed to participate in telephonic, videoconference, or in person meet and confer efforts as required by Code. If, after exhausting those efforts, court intervention is needed, counsel may appear and argue the merits on the continued hearing date. If counsel is unable to informally resolve their discovery disputes, then counsel is instructed to submit a joint separate statement with a detailed outline of the remaining disputed issues for which a ruling is required. The hearing on Defendant's Motions to Compel Further Discovery Responses are CONTINUED to September 9, 2026 in Department C at 9:30 a.m. The joint separate statement must be filed on or before September 2, 2026.

The Court orders the parties to meet and confer to resolve all other discovery disputes before seeking judicial intervention.